

3.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S NOTICE OF ANTI-SLAPP, SPECIAL MOTION TO STRIKE CROSS COMPLAINT

Tentative Ruling: Granted.

Attorney fees portion of Anti SLAPP is continued to Friday, August 21, 2026 at 8:30 a.m., Department PS2.

Moving party to provide notice pursuant to CCP 1019.5.

This action arises from the alleged injuries of Zenda Estates' April 24, 2025, Second Amended Complaint ("SAC") for: (1) Breach of Contract and (2) Declaratory Relief regarding the Settlement Agreement and Easement Agreement between Zenda Estates and PCMA. (Attached hereto as Exhibit "A" of the Request for Judicial Notice filed concurrently herewith.)

PCMA filed a Verified Third Amended Cross Complaint ("VTACC") on November 6, 2025, against Cross-Complainants and other Defendants alleging eight causes of action: (1) Breach of Contract, (2) Quiet Title, (3) Enforcement of Easement, (4) Express Indemnity, (5) Equitable Indemnity, (6) Declaratory Relief, (7) Petition for Writ of Mandate, and (8) Declaratory Relief C.C.P. § 526(a). (attached hereto as Exhibit "B" of the Request for Judicial Notice filed concurrently herewith.)

On January 23, 2026, Cross-Complainants filed the instant Cross Complaint alleging five causes of action: (1) Breach of Contract, (2) Interference with Contractual Relations, (3) Interference with Prospective Advantage, (4) Slander of Title, and (5) Invasion of Privacy. (Attached hereto as Exhibit "F" of the Request for Judicial Notice filed concurrently herewith.)

Cross-Defendant PCMA now moves to strike the 4th cause of action for slander of title in the cross-complaint filed on January 23, 2026, as well as the allegations referenced in the motion. This motion is made on the ground that the allegations and 4th cause of action for slander of title arise out of PCMA's constitutionally protected speech and petition and because Cross-Complainants cannot demonstrate a probability of prevailing on the merits. PCMA also seeks dismissal of the 4th cause of action as well as an award of attorney's fees and costs in connection with this special motion to strike pursuant to CCP § 425.16(c)(1).

Request for Judicial Notice (RJN)

PCMA asks the Court to take judicial notice of:

Exhibit A – Second Amended Complaint filed on April 24, 2025 to case number CVPS2407985 with the Riverside Superior Court;

Exhibit B – Verified Third Amended Cross Complaint filed by PCMA on November 6, 2025 to case number CVPS2407985 with the Riverside Superior Court;

Exhibit C – Court's Ruling on Motion to Expunge Lis Pendens, filed on September 29, 2025 to case number CVPS2407985 with the Riverside Superior Court;

Exhibit D – Court’s Ruling on Demurrer to Third Amended Cross Complaint filed on January 6, 2026 to case number CVPS2407985 with the Riverside Superior Court;

Exhibit E – Notices of Pendency of Action filed on June 10, 2025 and June 26, 2025; and Releases of Lis Pendens filed on October 20, 2025, to case number CVPS2407985 with the Riverside Superior Court; and

Exhibit F – Zenda Estate’s Cross Complaint filed on January 23, 2026, to case number CVPS2407985 with the Riverside Superior Court.

Exhibits A-F are judicially noticed (Ev. Code § 452(d), (g) and (f).)

Objections to moving declarations

Cross-Complainants allege that the declarations of Shawn Stoller and Rick L. Rapp are insufficient based on the semantic differences between declarants' "personal knowledge" and their "knowledge and belief," as well as semantics regarding declarants' competent abilities to testify. (Anti-SLAPP Opp., pg. 11-12.) However, Cross-Complainants' objections to these declarations have been waived because pursuant California Rules of Court 3.1354, written objections to evidence must be served and filed at the same time as the objecting party's opposition. Despite this waiver, the declarations of Rick L. Rapp and Shawn Stoller are proper evidence in defending against an Anti-SLAPP motion as executed pursuant to California Code of Civil Procedure § 2015.5. (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Ca1.5th 931.)

Anti SLAPP

As a general rule, when a cause of action arises out of the furtherance of a defendant’s right of petition or free speech in connection with a public issue, it is subject to a special motion to strike. (CCP § 425.16(b)(1).) An “act in furtherance of a person’s right of petition or free speech” ... includes ... any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or ... any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (CCP § 425.16(e)(3)-(4).) Importantly, however, “[t]he anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 [emphasis in the original]; see also Thus, courts use a two-step evaluation to determine whether an action is a SLAPP suit subject to a special motion to strike: (1) the plaintiff’s claim must arise out of the defendant’s protected speech or petitioning; and (2) the defendant’s claim lacks even minimal merit. (*Navellier v. Sletten*, (2009) 29 Cal.4th 82, 88-89; see also *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009-11; *Ericsson GE Mobile Communications, Inc. v. C.S.I. Telecommunications Engineers* (1996) 49 Cal.App.4th 1591, 1601, 1603.)

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (*Wilcox v. Superior Court* (1994) 17 Cal.App.4th 809, 819.) To meet the initial burden, a defendant need only show that the complaint “*arises from*” defendant’s exercise of free speech or petition rights as defined in §425.16(e). (*Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61.) The act which forms the basis for the cross-claimant’s cause of action must itself have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76-78.) Once the defendant makes such a prima facie showing, the burden shifts to the plaintiff to establish a “probability” that it will prevail on whatever claims are asserted against the moving defendant. (CCP § 425.16(b); *Navellier, supra*, 29 Cal.4th at 89, 93.)

“Arising from” means that the defendant’s act underlying the plaintiff’s causes of action must *itself* have been an act in furtherance of the right of petition or free speech. (*City of Cotati, supra*, 29 Cal.4th at 78.) In other words, “the critical consideration is whether the cause of action is *based on* the defendant’s protected free speech or petitioning activity.” (*Navellier, supra*, 29 Cal.4th at 89.) Whether the anti-SLAPP statute applies is determined by the “principal thrust or gravamen” of the plaintiff’s claims; it cannot be invoked where the allegations of protected activity are only *incidental* to a cause of action based on nonprotected activity. (*Martinez v. Metabolife Int’l, Inc.* (2003) 113 Cal.App.4th 181, 187.) “If the core injury-causing conduct on which plaintiff’s claim is premised does not rest on protected speech, collateral or incidental allusions to protected activity will not trigger application of the anti-SLAPP statute.” (*Trilogy at Glen Ivy Maintenance Assn. v. Shea Homes, Inc.* (2015) 235 Cal.App.4th 361, 368 [*citing Martinez, supra*, 113 Cal.App.4th at 189].) “To determine the applicability of . . . the anti-SLAPP statute, [courts] look to the gravamen of the instant action. . . . [T]he gravamen of an action is the *allegedly wrongful and injury-producing conduct*, not the damage which flows from said conduct.” (*Renewable Resources Coalition, Inc. v. Pebble Mines Corp.* (2013) 218 Cal.App.4th 384, 387 [*italics in original*]; *accord Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 121. The mere fact that an action was filed after protected activity took place does not mean that the action arose from that activity for the purposes of the anti-SLAPP statute. (*City of Coati, supra*, 29 Cal.4th at 76-78.) A cause of action that arguably may have been “triggered” by protected activity does not mean that it is one arising from such. (*Id.* at 78.)

An Anti-SLAPP motion “may be filed within 60 days of service of the complaint.” (C.C.P. § 425.16(f).) Cross-Complainants filed and served the Cross Complaint on January 23, 2026. (See Exhibit “F”)

Here, the instant motion, filed on March 24, is timely.

Protected Activity

Here, the filing of a cross-complaint and notices of pendency of action are activities that are expressly protected under the Anti-SLAPP statute and the claims in the cross-complainants’ cross-complaint are based on allegations arising from those activities. The Cross Complaint clearly attempts to chill the right of petition by raising allegations that directly reference the pleadings and notices filed by PCMA as elements to their causes of action (all allegations were incorporated into all causes of action). For example, Cross-Complainants introduce their allegations by stating that “On or about June 2, 2025, PCMA filed a Cross-Complaint against CROSS-COMPLAINANTS, among other Cross-Defendants.” (Cross Complaint, ¶ 35, pg. 8.) The Cross Complaint further references the direct quotes and inferences from PCMA’s Verified Third Amended Cross-Complaint (“VTACC”) and previously recorded (and withdrawn) Notices of Pendency of Action against all Cross-Complainants as allegations supporting all five of their causes of action (despite relevancy to all causes of action pled) as fully quoted in the above Motion. (Cross Complaint, ¶ 36, pg. 8; ¶ 39, pgs. 8 – 9; ¶ 40, pg. 9; ¶ 41, pg. 9, and ¶ 76, pg. 20; ¶ 42, pg. 10, and ¶ 77, pg. 20; fn. 3, pg. 10; ¶ 47, pgs. 10 – 11; ¶ 48, pg. 11; ¶ 49, pg. 11; ¶ 50, pg. 11; ¶ 51, pg. 12; ¶ 52, pg. 12; ¶ 53, pg. 12; ¶ 54, pg. 13; ¶ 55, pg. 13; ¶ 56, pg. 13; ¶ 57, pg. 13; ¶ 58, pg. 14; ¶ 59, pg. 14; ¶ 60, pg. 14; ¶ 63, pg. 15; ¶ 64, pg. 15; ¶ 75, pg. 20; ¶ 78, pg. 21; ¶ 79, pg. 21; ¶ 81, pg. 21.)

Also, the Cal. Supreme Court found that CCP § 47(b) provides privilege to the filing of a notice of lis pendens by stating that “It is our opinion that the privilege applies to any publication, such as the recordation of a notice of lis pendens, that is required (e.g., Code Civ. Proc., § 749) or permitted (e.g., Code Civ. Proc., § 409) by law in the course of a judicial proceeding to achieve the objects of the litigation, even though the publication is made outside the courtroom and no function of the court of its officers is invoked.” (*Frank Pisano & Associates v. Taggart* (1972) 29 Cal.App.3d 1, 25, quoting *Albertson v. Raboff* (1956) 46 Cal.2d 375, 381 (disapproved in part by

La Jolla Group II v. Bruce (2012) 211 Cal.App.4th 461, 473, clarifying that the 1992 amendment to C.C.P. § 47 partially abrogated the absolute privilege and provides that the recording of a lis pendens is not privileged unless it identifies a previously filed action in a court with jurisdiction that affects title or possession of real property.) Therefore, the litigation privilege of C.C.P. § 47 is not limited to pleadings, so long as the publication “has a reasonable relation to the action and is permitted by the law, the absolute privilege attaches.” (*Frank Pisano & Associates*, supra, 29 Cal.App.3d at 25, quoting *Albertson*, supra, 46 Cal.2d at 380-381.)

The petitions filed on behalf of PCMA are of public significance because the initial source of the pending litigation of this case arises from the issue of PCMA’s rights in real property contracted to between the homeowners association (PCMA) and residents of the development. Thus, PCMA’s VTACC and Notices of Lis Pendens are protected activity that fall under the litigation privilege pursuant to C.C.P. § 47 and C.C.P. § 425.16.

The 4th cause of action for slander of title violates the protected activity afforded to PCMA under the Anti-SLAPP statute based on PCMA’s filing of a cross-complaint and notices of pendency of action. The basic elements for a Slander of Title cause of action include: “(1) a publication, (2) which is without privilege or justification, (3) which is false, and (4) which causes direct and immediate pecuniary loss.” (*Alpha & Omega Development, LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 664; *Finch Aerospace Corp. v. City of San Diego* (2017) 8 Cal.App.5th 1248, 1253.) It is the defendant’s burden to show that the slander of title claim stems from protected speech or petitioning. (*Alpha & Omega Development, LP*, supra, 200 Cal.App.4th at 662.)

PCMA has met its burden to show that the slander of title claim by Cross-Complainants stems from protected petitioning because the Cross Complaint directly references (1) the VTACC filed by PCMA, and (2) the Notices of Pendency of Action filed by PCMA (Exhibit “B” and “E” of the Request for Judicial Notice filed concurrently herewith.) First, the Notices of Pendency of Action were filed by PCMA against Cross-Complainants on June 10, 2025, and June 26, 2025, in connection with the overall issue of the pending litigation regarding the Easement Agreement (See, Exhibit “E” Notices of Pendency of Action), a real property issue, to effectuate constructive notice of the pending actions beginning with the initial pleading filed by Plaintiff Zenda Estates in December of 2024, and further amended until filed on April 4, 2025, (See, Exhibit “A” Second Amended Complaint), which eventually lead to PCMA’s Cross-Complaint filed in June of 2025, and further amended until filed on November 6, 2025. (See, Exhibit “B” VTACC.) (See also, Declaration of Shawn Stoller (“Stoller Dec.”), at ¶ 4, ¶ 5, and ¶ 7.) (See also, Declaration of Rick Rapp (“Rapp Dec.”), at ¶ 4, ¶ 5, and ¶ 7.)

Consequently, the Notices of Pendency of Action filed by PCMA were in response to the real property issue brought on by Zenda Estates and supplemental to PCMA’s real property issue as addressed in PCMA’s initial Cross-Complaint. Since the litigation privilege of C.C.P. § 47(b) extends to lis pendens if it “(1) identifies an action ‘previously filed’ in a court of competent jurisdiction that (2) affects title or right of possession of real property” then the privilege applies here because PCMA’s actions in recording the lis pendens against Cross-Complainants clearly identified the pending action and requested Quiet Title to the rights afforded in the Easement Agreement based on PCMA’s rights at issue from Zenda Estates’ initial complaint. (See, Exhibits “A” and “B”) (*Alpha & Omega Development, LP*, supra, 200 Cal.App.4th at 665; *La Jolla Group II*, supra, 211 Cal.App.4th at 476, internal citations omitted.) Also, by association and independently, the Cross-Complaint filed by PCMA is also subject to the litigation privilege and is considered protected activity pursuant to C.C.P. § 47 and § 425.16. Thus, neither the VTACC filed by PCMA nor the recorded (and later withdrawn) Notices of Pendency of Action satisfy the second basic and necessary element of a Slander of Title cause of action because the petitions are privileged.

In the Opposition, Cross-Complainants refer to the Court's Final Ruling on the Motions to Expunge the Lis Pendens to imply that because PCMA's Notices of Pendency of Action were denied, then that automatically means that the lis pendens were improperly recorded. (Anti-SLAPP Opp., pg. 2-3, ¶ 1.) For example, Cross-Complainants reference the Court's Final Ruling of the Motion to Expunge the Lis Pendens, which states that "PCMA has failed to establish by a preponderance of evidence that it will prevail on its real property claim," although Cross-Complainants have twisted the Court's ruling here to imply that since PCMA failed to establish that it will prevail on its real property claim in its attempt to record Notices of Pendency of Action, then somehow those filings were improper. (Anti-SLAPP Opp., pg. 8.) By that logic, any litigant that files a lawsuit yet obtains a judgment favorable to the opposing party is at risk of a countersuit for frivolous litigation.

Further, Cross-Complainants alleges that "[a]n improperly recorded Notice of Pendency of Action could support a claim for slander of title and/or even interference with prospective advantage arising, for instance, out of the property owner's inability to perform under a contract for the sale of the property due to the Notice of Pendency of Action clouding title," but unfortunately, Cross-Complainants failed to provide a citation as to where such a claim is made in law or fact thereby preventing PCMA from responding to this claim. (Anti-SLAPP Opp., pg. 3,11 1.) Cross-Complainants fail to prove that the Court's Final Ruling regarding the Motions to Expunge the Lis Pendens clearly categorized PCMA's filings of lis pendens as improper recordings, and while PCMA may have failed to establish that it would prevail on its real property claim, the claim still does affect real property as required by California Code of Civil Procedure § 47(b)(4).

At the suggestion of Cross-Complainants that prior to filing a Notice of Pendency of Action, the "pleader and its counsel should spend a bit more time identifying the 'real property' claim," PCMA points to how California law defines a real property claim. (Anti-SLAPP Opp., pg. 8.) A real property claim exists where "the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (Cal. Civ. Proc. Code § 405.4.) The Easement Agreement between PCMA and Cross-Complainants is one of the main issues at dispute in this action and has been the heart of this action since the beginning as indicated in all of Cross-Complainants' filings, thus, the lis pendens recorded by PCMA identified a previously-filed action affecting the title to or right of possession of real property as authorized by law with this Court, thereby affording those filings protection under the litigation privilege. (Cal. Civ. Proc. Code § 47(b)(4).) Cross-Complainants point to a case cited in PCMA's Special Motion to Strike (Anti-SLAPP) in an attempt to infer that recording a lis pendens is not protected activity and is only afforded an absolute privilege under very limited circumstances. (*Alpha & Omega Development, LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656.) In *Alpha & Omega Development LP v. Whillock Contracting, Inc.*, the Court stated that the Alpha "understandably conceded" that Whillock's burden to show the slander of title cause of action arose from its furtherance of rights of petition or free speech in filing a lis pendens which fell within the meanings of the California Code of Civil Procedure § 425.16(b)(1) and (e). (Id. at 660.) The Court pointed to the trial court's reasoning that Alpha could not show a probability of prevailing on its slander of title claim because Whillock had met its burden of showing that the lis pendens is protected by the litigation privilege since the action was a complaint for foreclosure of a mechanic's lien, thus "this privilege is absolute and applies to all publications irrespective of the maliciousness and on these grounds, defendants are not liable for slander of title." (Id. at 662.) The litigation privilege of C.C.P. § 47(b) extends to lis pendens if it "(1) identifies an action 'previously filed' in a court of competent jurisdiction that (2) affects title or right of possession of real property" then the privilege applies here because PCMA's actions in recording the lis pendens against Cross-Complainants clearly identified the pending action and requested Quiet Title to the rights afforded in the Easement Agreement based on PCMA's rights at issue from Zenda Estates' initial complaint. (Id. at 665; PCMA Anti-SLAPP, pg. 26.) Also, by

association and independently, the Cross-Complaint filed by PCMA is also subject to the litigation privilege and is considered protected activity pursuant to C.C.P. § 47 and § 425.16.

Accordingly, neither the VTACC filed by PCMA nor the recorded (and later withdrawn) Notices of Pendency of Action satisfy the second requisite element of a Slander of Title cause of action because the petitions are privileged.

PCMA's Special Motion to Strike (Anti-SLAPP) as applied to any reference of the VTACC from the Fourth Cause of Action for Slander of Title in the Cross-Complaint is not opposed by Cross-Complainants. (PCMA Anti-SLAPP, pg. 22-28.)

Probability of Prevailing on Merits

Cross-Defendants met their initial burden on this motion of showing that the cross-complaint arises from protected activity. The burden shifts to Cross-Complainants to show, by admissible evidence, a reasonably probability of prevailing.

Slander of Title Claim

In addition to the discussion of the 4th cause of action for slander of title, above, to further establish a claim for Slander of Title, a plaintiff must prove that (1) the defendant made a statement/publication that casts doubt about plaintiff's ownership of property; (2) the statement/publication was made to a person other than the plaintiff; (3) the statement was false and the plaintiff did in fact own the property; (4) the defendant knew/acted with reckless disregard of the truth or falsity as to whether the plaintiff owned the property; (5) the defendant knew or should have recognized that someone else might act in reliance on the statement/publication, causing plaintiff financial loss; (6) the defendant did in fact suffer immediate and direct financial harm because someone else acted in reliance on the statement/publication, or by incurring legal expenses necessary to remove the doubt case by the statement/publication; and (7) the defendant's conduct was a substantial factor in causing the plaintiff's harm. (See CACI 1730. Slander of Title – Essential Factual Elements.)

Even if by some chance the litigation privilege failed to cover the VTACC and the recorded Notices of Pendency of Action filed by PCMA, the Cross-Complainants' claim for Slander of Title would still fail because plaintiff's have yet to show, and will likely be unable to show, a probability of prevailing on the claim. Cross-Complainants have failed to show in their Cross Complaint or supporting exhibits any malicious intent behind PCMA's petitions, and mere allegations of falsity are not enough to prove that false statements were recorded in the petitions, nor are the allegations enough to show that the filing of such petitions was conducted with ill intent, despite falsehoods.

For example, Cross-Complainants repeatedly stated inflated allegations by claiming that: "without any legal justification, PCMA recorded Notices of Pendency of Action," (Cross Complaint, ¶ 36, pg. 8) and "PCMA made unverified and false statements in the [VTACC]," (Cross Complaint, ¶ 39, pgs. 8-9; ¶ 40, pg. 9) and "unlawful recording of Notices of Pendency of Action," (Cross Complaint, ¶ 49, pg. 11; ¶ 53, pg. 12; ¶ 54, pg. 13; ¶ 55, pg. 13; ¶ 58, pg. 14; ¶ 59, pg. 14) and even "recording of the false and fraudulent Notices of Pendency of Actions," (Cross Complaint, ¶ 63, pg. 15; ¶ 64, pg. 15). Also on the list of inflated allegations claimed by Cross-Complainants is the plaint statement that "[t]he damages to date suffered by Gale Futterman is severe emotional stress and anxiety brought on by the tens of false allegations by PCMA" without reference to any specific "false" allegations made by PCMA, just a simple statement leaving the defendants and the Court to guess whether the so-called damages stem from PCMA's petitions or not. (Cross Complaint, ¶ 60, pg. 14.) Not only are these allegations from the Cross Complaint prejudicial to

PCMA's right to petition and efforts to achieve the objects of its litigation, but these statements are also intended to chill PCMA's right to petition against Cross-Complainants.

The Cross Complaint further alleges that "the Court granted ZENDA ESTATE and HARRIES Motion to Expunge Pendency of Action holding that PCMA failed to provide any argument that it would prevail on its real property claims[.]" however, PCMA's lack of success in challenging the lis pendens and subsequent withdrawals does not equate to false filing of the Notices of Pendency of Action and does not equate malicious intent (Cross Complaint, ¶ 41, pg. 9; ¶ 76, pg. 20.) As indicated in Exhibit E, the Notices of Pendency of Action were filed requesting "to Quiet Title with respect to the rights set forth in the easement affecting Real Property," and briefly stated the facts of the dispute as outlined in pending litigation, but no allegations were included to infer falsity or malice. (See, Exhibit "E", pg. 2 of each filing.) (See also, Stoller Dec., at ¶ 4, ¶ 5, and ¶ 7.) (See also, Rapp Dec., at ¶ 4, ¶ 5, and ¶ 7.)

First, filing a police report that is expressly protected under the Anti-SLAPP statute and the claims in the Cross-Complaint are based on allegations arising from those activities. In *Case Title v. Sdsu Aztec Rec. Ctr. Arc* (2022) Cal. Super. LEXIS 16140, the Court explained that plaintiff's allegation of defendant complaining to police is what brought the cross-complaint within the SLAPP statute because the law finds that communications to the police are well within the statute since such communications fall under C.C.P. § 425.16(e)(1) and (2). (*Case Title v. Sdsu Aztec Rec. Ctr. Arc* (2022) Cal. Super. LEXIS 16140, *3-4 (Cal. Super. Ct. April 15, 2022); *Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941-941; referencing *Lee v. Fick* (2005) 135 Cal.App.4th 89, 97 [complaint to the government is itself "part of the official proceedings"].)

In the present matter, Cross-Complaints allege that "HOA members (some drunk) have harassed Los Palos/Zenda Owners, young women working the gates at events and made hundreds of false statements online and to the Indio Police Department about the Los Palos/Zenda Owners and their properties;" and this allegation appears to have been exactly copied and pasted in three parts of the Cross Complaint as a claim on behalf of three of the Cross-Complainants. (Cross Complaint, ¶ 47(d), pgs. 10-11; ¶ 51(e), pg. 12; ¶ 56(d), pg. 13.) Thus, the allegation that HOA members made hundreds of false statements to the Indio Police Department are directly related to the Cross-Complainants' purpose of bringing this Cross Complaint, which is to chill the speech of PCMA and HOA members from pursuing their right to report to law enforcement, thereby bringing the Cross Complaint within the SLAPP statute.

Even though causes of action that arise from false allegations are not subject to Anti-SLAPP laws, merely claiming that a report to law enforcement was made with false information is not enough to remove the protection of C.C.P. § 425.16. (*Abuemeira v. Stephens* (2016) 246 Cal.App.4th 1291, 1298, internal citations omitted.) According to the Court in *Kenne v. Stennis* 230 Cal.App.4th 953, "when allegations of making false reports are controverted, they are insufficient to render that alleged conduct unlawful as a matter of law and outside the protection of section 425.16." (*Kenne v. Stennis* (2014) 230 Cal.App.4th 953, 967; See *Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1512 [the defendant's allegedly false report to police ... was deemed protected activity because there was not uncontroverted evidence which showed that it was false].) "Our Supreme Court has explained that, in deciding whether the initial 'arising from' requirement is met, a court considers the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (*Case Title, supra*, Cal. Super. LEXIS 16140 at *5; quoting *Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 935, emphasis in original.) However, a failure to submit declarations or other evidence in support of allegations leaves the Court to rely on the information pled in the pleadings. (*Case Title, supra*, Cal. Super. LEXIS 16140 at *5.)

PCMA has formally disputed the claims that any of its petitions are false through the formerly filed Motion to Strike, but also disputes such allegations here as applicable to C.C.P. § 425.16. Despite

the fact that Cross-Complainants allegations are controverted, the allegations referring to reports made to the Indio Police Department are protected regardless of the allegedly false claims made in those reports. (See, *Kenne, supra*, 230 Cal.App.4th at 967.) Additionally, the claims made in Paragraphs 47(d), 51(e), and 56(d) of the Cross Complaint are prejudicial to PCMA because these allegations fail to be supported by any proof or at least further reference to allow PCMA to understand (1) when these allegations took place, such as prior to litigation or during the pending litigation, (2) who conducted these actions, in order to understand whether these “HOA members” were just individuals residing within the development or actual members of the PCMA Board, and (3) what statements were made to law enforcement that have been categorized as false according to Cross-Complainants. (Cross Complaint, ¶ 47(d), pgs. 10-11; ¶ 51(e), pg. 12; ¶ 56(d), pg. 13.)

Without such information to understand those basic questions, PCMA is significantly hindered from the ability to appropriately defend itself and is forced to proceed with assumptions. Assuming that the alleged police reports took place in preparation for and/or during the pending litigation, then the claims are constitutionally-protected rights of petition and free speech. Also, since the “HOA members” in the alleged claims could refer to any member residing the PCMA development, then PCMA assumes that the police reports were initiated by private individual unrelated to PCMA, without the direction of PCMA or its Board in their official capacity, and not on behalf of PCMA or its Board in their official capacity, and thus these allegations are irrelevant to the Cross Complaint against PCMA and should be stricken. (See, *Stoller Dec.*, at ¶ 6.) (See also, *Rapp Dec.*, at ¶ 6.) Finally, without any declarations or evidence of the alleged police reports referred to in the Cross Complaint, there is no information left for the Court to rely upon in determining the falsehoods claimed except for the pleading of the Cross Complaint itself. (*Case Title, supra*, Cal. Super. LEXIS 16140 at *5.) GRANTED

Attorney's Fees

CCP § 425.16, subdivision (c)(1) provides that a prevailing defendant on a special motion to strike “shall be entitled to recover his or her attorney’s fees and costs.” An award of attorneys’ fees under the Anti-SLAPP statute is mandatory, not discretionary. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

Cross-Defendants, as prevailing parties on this special motion to strike, are entitled to recover reasonable attorney’s fees and costs pursuant to CCP § 426.15(c).

In this matter, it seems that counsel is only asking for fees and costs connected to this motion, as the entire Cross-Complaint is not being dismissed through this motion.

Cross-Defendants ask for fees and costs totaling \$11,872. The Declaration of attorney Carol Baidos declares:

¶7. As a partner, my hourly rate is set at \$240 per hour. I supervise the work and billing of associate attorney Jackie Aboud, whose hourly rate is \$190 per hour.

¶8. Our records indicate that I have expended 12.3 hours of time in researching, drafting, revising and editing the present motion and supporting papers, for a total of \$ 2,952 . Attorney Aboud has spent 32 hours researching, drafting, revising and editing the present motion and supporting papers, for a total of \$ 6,080 .

¶9. It is anticipated I will expend .5 hours reviewing Zenda Estate’s Opposition to the motion, and 3 hours drafting the Reply, for a total of 3.5 hours, and \$ 840 .

¶10. It is anticipated Ms. Aboud will expend 1 hour reviewing Zenda Estate's Opposition to the motion, and 7 hours drafting the Reply, for a total of 8 hours, and \$ 1,520 .

¶11. It is anticipated I will expend 2 hours attending the hearing on this matter, for a total of \$ 480 .

¶12. In sum, our request for attorney's fees regarding this motion total \$ 11,872 .

While the amounts requested for reviewing and drafting the reply are only "anticipated," there is no further declaration supporting that these fees were actually incurred. Also, Cross-Complainants have claimed that attorney's and costs should not be imposed at all, as they claim the motion should be denied. Moving counsel is ordered to submit a supplemental declaration attesting to fees actually incurred to review the opposition and prepare the reply no later than August 3, 2026 by 4:00 p.m. PST. Cross-Complainants may oppose the fees hours and amounts if they choose by filing a supplemental opposition within 9 days of the continued hearing date on attorneys fees.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2505265	YIP VS HEDBERG CONSTRUCTION, INC.	DEMURRER ON 1ST AMENDED COMPLAINT OF GEEMAN YIP BY HEDBERG CONSTRUCTION, INC.

Tentative Ruling: Overruled.

Moving Defendant to file their answer to operative 1st Amended Complaint within 20 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This is a home improvement dispute. Plaintiff Geeman Yip ("Plaintiff") alleges that Defendant Hedberg Construction, Inc. ("Defendant"), through its principal, Mark Hedberg, held itself out as a general contractor experienced in residential remodeling projects. Plaintiff alleges that the parties entered into a home improvement agreement in July 2022 for his 7,255-square-foot residence located at 106 Lantana View, Palm Desert, California. Plaintiff alleges that Defendant never presented a statutorily required home improvement contract despite Plaintiff asking for one, nor had Defendant provided an actual estimate of costs. Plaintiff asserts that Defendant requested a 10% security deposit totaling \$144,999.58, which exceeds the statutory limits for these contracts. Plaintiff asserts that Defendant overcharged for unjustified and unapproved items, such as billing Plaintiff for patching drywall holes mistakenly created by Defendant. Plaintiff further asserts that Defendant made representations that he would reimbursement Plaintiff for deficiencies but never did so. Plaintiff contends that Defendant failed to send estimates for approval despite promising to do so, improperly billed fees for his own son as an unqualified assistant, as well as demanded and acknowledged prepayment for work that was never completed. Plaintiff allegedly paid a total of \$2,645,268.92 over an initial budget of \$1,565,765.45.

The First Amended Complaint ("FAC"), filed 4/30/26, asserts: (1) declaratory relief to declare agreement void or voidable and unenforceable; (2) breach of agreement; (3) negligence; (4) negligence per se; (5) violation of the unfair competition law; (6) accounting; (7) fraud; (8) negligent misrepresentation; and (9) payment on contractor's license bond.

Now, Defendant Hedberg Construction, Inc. demurs to the 7th cause of action (fraud) for failure to state facts sufficient and for failure to plead with particularity. Defendant argues that Plaintiff